

		and an adverse claim. (SAC, ¶¶ 1, 173-177.) Thus, APSEC's demurrer to the 10th cause of action is overruled. <u>Reinstatement of Loan</u> As discussed above, plaintiffs have adequately alleged a cause of action for wrongful foreclosure. Thus, plaintiffs may reinstate their loan. Therefore, defendants' demurrer to the 11th cause of action is overruled.
6	23-01333845 <i>Garcia vs. Mazda Motor of America, Inc.</i>	Motion to Compel Production OFF CALENDAR
7	22-01241218 <i>Gay vs. Nguyen</i>	Motion for Summary Judgement and/or Adjudication The motion of defendant Memorial Care Surgical Center at Orange Coast, LLC ("Surgery Center") for Summary Judgment in favor of the Surgery Center as to plaintiffs David L. Gay and Jamie Gay's Second Amended Complaint is DENIED. <u>Evidentiary Objections:</u> California Rules of Court, Rule 3.1354, subdivision (b) which states in pertinent part: "Each written objection must be numbered consecutively and must: . . . (3) Quote or set forth the objectionable statement or material. . ." Both Surgery Center and Plaintiffs have filed extensive evidentiary objections, however, neither party has complied with Rule 3.1354 and quoted or set forth the objectionable statement or material to which the objection is made. Therefore, the Court declines to rule on the evidentiary objections filed by the parties. <u>Request for Judicial Notice:</u> Surgery Center's Request for Judicial Notice of Exhibits A-U is GRANTED. Plaintiffs' Request for Judicial Notice is DENIED as unnecessary to the disposition of the Motion. <u>Merits:</u> "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c(a)(1).) "A defendant moving for summary judgment must show 'that one or more elements of the cause of action...cannot be established, or that there is a complete defense to the cause of action.'" (<i>Wicks v. Antelope Valley Healthcare District</i> (2020) 49 Cal.App.5th 866, 875.) "Summary judgment is appropriate where 'all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.'" (<i>Wicks, supra</i>, 49 Cal.App.5th 875.) "Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to that cause of action or a defense thereto." (Code Civ. Proc. § 437c(p)(2).)

Plaintiff David L. Gay asserts a single cause of action for Negligence/Malpractice against the Surgery Center and Plaintiff Jamie Gay asserts a single cause of action for Loss of Consortium arising out of Mr. Gay's claim for Negligence/Malpractice.

Negligence/Malpractice:

"The elements of a medical malpractice cause of action are: " "(1) duty of professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between negligent conduct and resulting injury; and (4) actual loss or damage resulting from professional's negligence." [Citation.] " " [Citation.]" (*Avivi v. Centro Medico Urgente Medical Center (Avivi)* (2008) 159 Cal.App.4th 463, 468, fn. 2.)

"Because the standard of care in a medical malpractice case is a matter 'peculiarly within the knowledge of experts' [citation], expert testimony is required to 'prove or disprove that the defendant performed in accordance with the standard of care' unless the negligence is obvious to a layperson." (*Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 305.)

" " "California courts have incorporated the expert evidence requirement into their standard for summary judgment in medical malpractice cases. When a defendant moves for summary judgment and supports his motion with expert declarations that his conduct fell within the community standard of care, he is entitled to summary judgment unless the plaintiff comes forward with conflicting expert evidence." [Citations.]' [Citations.]" (*Hanson v. Grode (Hanson)* (1999) 76 Cal.App.4th 601, 607.)

Surgery Center moves on the grounds that plaintiff Mr. Gay cannot establish two elements of the medical negligence cause of action: (1) breach of the applicable standard of care; and (2) proximate causal connection between Mr. Gay's alleged injuries and any alleged negligence by the Surgery Center.

The Surgery Center relies on the expert declaration of Pat Minero, BSN, AND, CNOR ("Nurse Minero") a California licensed registered nurse to show that the Surgery Center did not breach the applicable standard of care and that the Surgery Center's acts were not a legal cause of Plaintiffs' injuries. Nurse Minero states based upon her education, training, experience, and expertise as an experienced registered nurse, as well as her review of the records and discovery in this matter, it is her opinion that the care provided to Mr. Gay by the nursing staff and/or non-physician healthcare staff of the Surgery Center at all times, up through and including after the upper endoscopy and colonoscopy procedures performed on Mr. Gay by Dr. Nguyen on November 11, 2020, at the Surgery Center, complied with the applicable standard of care. (Nurse Minero Decl., ¶¶ 27, 65.) It is also Nurse Minero's opinion with a medical probability that no alleged negligence of nursing staff and/or non-

physician healthcare staff of the Surgery Center was the legal cause of any of the complications and/or injuries alleged by Plaintiffs. (Nurse Minero Decl., ¶ 66.) Nurse Minero further opines the Surgery Center did not breach the standard of care by granting surgical privileges to a non-board-certified gastroenterologist to perform a colonoscopy procedure at the Surgery Center and that board-certification, by itself, is not the standard of care for granting surgical privileges at an ambulatory surgery center. (Nurse Minero Decl., ¶ 64.)

Plaintiffs argue Nurse Minero’s opinion is flawed because she did not have access to the Surgery Center’s binding admission, which was supplemented on September 13, 2023 (after the motion for summary judgment was filed) and did not review the depositions of the Person Most Knowledgeable (“PMK”) of the Surgery Center, Dr. Nguyen, and Mr. Gay.

As to the Surgery Center’s admission, Plaintiffs have shown that the Surgery Center has admitted that “it is more likely than not that Plaintiff David L. Gay experienced a ‘splenic injury,’ namely a splenic artery tear, during the colonoscopy Dr. Nguyen performed on him.” (Dolce Decl, Ex. 5 [RFA Response No. 14].)

Further, Plaintiffs have shown that Nurse Minero’s opinion did not consider the deposition testimony of the PMK for the Surgery Center who testified that it is the Surgery Center’s “procedure that if a patient were to be complaining of pain, that whoever is wheeling that patient down regardless if they’re a nurse, a medical assistant, that they would instruct the charge nurse, bring the patient back upstairs, and make sure we address any pain. (Hoffman Depo., 160:9-14.)

Similarly, Plaintiffs have shown Nurse Minero’s opinion did not consider Dr. Nguyen’s testimony that it was his practice not to send a patient home if they are in pain which he considers “medical care as well as compassionate care.” (Dr. Nguyen Depo., 127:25-128:2.)

Lastly, Plaintiffs argue Nurse Minero did not consider plaintiff Mr. Gay’s deposition during which he testified that when he was placed in the wheelchair: “I was bent leaning over, bent over in a fetal position . . . , bent over, holding my stomach, and saying, ‘My fucking stomach is fucking killing me.’” (Mr. Gay’s Depo., 60:7-10.) Although Nurse Minero did not consider Mr. Gay’s deposition testimony, she did take into account Plaintiff’s verified allegations of pain in his FAC paragraphs 35 and 36 in which Plaintiffs allege Mr. Gay was “experiencing severe abdominal pain after she wheeled him outside for transfer to Jamie Gay” and that “[i]n response to Jamie Gay’s concern for her husband’s complaints of pain and appearance distress, DOE 1 reassured her that it was most likely because of the anesthesia wearing off.” (SAC, ¶¶ 35-36.)

“The evidence of the party opposing the motion must be liberally construed, and that of the moving party strictly construed.” (*Johnson v. Superior Ct.* (2006) 143 Cal.App.4th 297, 308.) Here, Nurse Minero did not consider the Surgery Center’s admission that “it is more likely than

		not that Plaintiff David L. Gay experienced a ‘splenic injury,’ namely a splenic artery tear, during the colonoscopy Dr. Nguyen performed on him;” the depositions of the PMK of the Surgery Center and Dr. Nguyen that it was their standard of care to not discharge a patient complaining of pain, or the deposition testimony of plaintiff Mr. Gay that he complained of severe pain when he was being discharged. Since Nurse Minero’s opinion does not consider this evidence, Nurse Minero’s declaration is insufficient to meet the Surgery Center’s initial burden proof to establish the Surgery Center acted within the standard of care in the community and that the Surgery Center’s acts were not a legal cause of Plaintiffs’ injuries. Accordingly, judgment on the negligence/malpractice cause of action is DENIED. Since plaintiff Jamie Gay’s Loss of Consortium cause of action also arises out of Mr. Gay’s claim for Negligence/Malpractice, judgment as to the Loss of Consortium claim is also DENIED. Based on the foregoing, the Motion for Summary Judgment is DENIED. Moving party to give notice.
8	23-01357339 <i>Guarienti vs. Providence Saint Jude Medical Center</i>	Demurrer to Amended Complaint Defendant Pauline Ho, M.D.’s Demurrer to Plaintiff’s First Amended Complaint is OVERRULED. Defendant contends Plaintiff has failed to allege the elements of constructive fraud, and that Plaintiff’s claim is barred under the Federal Public Readiness and Emergency Preparedness Act, 42 U.S.C. §§ 247d-6d, 247d-6e (“PREP Act”). In the First Amended Complaint (FAC), Plaintiff alleges Defendants negligently treated decedent for COVID-19, including providing Remdesivir and failing to provide information about potential off-label treatments such as hydroxychloroquine. Rather than pursuing a claim for medical negligence, Plaintiff has chosen to base her wrongful death claim on a violation of Civil Code section 1573, which states: “Constructive fraud consists: 1. In any breach of duty which, without an actually fraudulent intent, gains an advantage to the person in fault, or any one claiming under him, by misleading another to his prejudice, or to the prejudice of any one claiming under him; or, 2. In any such act or omission as the law specially declares to be fraudulent, without respect to actual fraud.”